

①句直接指出公民应该自行采取措施保护数字隐私(如尽力避免将隐私存储到智能设备)。protect their digital privacy 紧承上段“手机隐私威胁”,且回应开篇 protect your digital data (their = your = Americans',泛指美国公民),凸显本文关注问题。Americans should take steps 强调“个人应该采取措施”。

②转而指出如今将敏感信息存储到智能设备日益成为正常生活所需(仅靠个人已无法保护数字隐私)。sensitive((文件、报告)机密的,须妥善保管的)点出信息的“敏感性、隐私性”;increasingly a requirement of normal life(normal 意为 usual, typical, 表示“已成常态”)强调将敏感信息储存在智能设备上日益成为正常生活所必需、无可避免;两者共同暗示个人数字隐私亟待法律保护。

③句明确指出公民有权要求私人文件受到宪法“禁止无理搜查”的保护。still(然而,尽管如此)针对②句所述情形,转而强调可喜情形“公民有权期待法律保护”。have a right to expect private documents to remain private, protected by the Constitution's prohibition 指向宪法(第四修正案)赋予人们的权利:免受不合理搜查。

【深层解读】②句的 But 实则涵盖②③两句,和①句形成两个层面的转折:①②句以 Americans should... But... 形成对比转折(人们应该如何 VS 现实情形如何),强调如今情形:人们不得不将敏感信息存储到智能设备上,面临隐私威胁。①③句以 Americans should take steps... Citizens still have a right to expect... 形成让步转折(人们应该自行采取措施——但依然有权利期待法律保护),强调宪法赋予公民的“免受无理搜查”权利。

VI ① As so often is the case, stating that principle doesn't ease the challenge of line-drawing. ② In many cases, it would not be overly burdensome^① for authorities^② to obtain^③ a warrant to search through phone contents. ③ They could still invalidate Fourth Amendment protections when facing severe, urgent circumstances, and they could take reasonable measures to ensure that phone data are not erased^④ or altered while waiting for a warrant. ④ The court, though, may want to allow room for police to cite situations where they are entitled to more freedom.

申明原则并不能减轻界限划定的挑战,这是常有的事。很多情况下,当局获得搜查令再搜查手机信息也不会太麻烦。他们还可以在面临严峻、紧急情况时越过第四修正案的保护条例;他们也可以在等待搜查令时采取合理措施以保证手机数据不被删除或更改。尽管如此,最高法院或许还想要为警方引证有权行使更多自主行为的情形留下空间。

· 词汇注释与难句分析 ·

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①burdensome ['bɜːdnəsm] a. 繁重的; 麻烦的

②authority [ɔː'thɒrɪti] n. 权威; 权力

③obtain [əb'teɪn] v. 获得, 得到

④erase [ɪ'reɪz] v. 擦掉; 抹去; 清除

①as so often is the case(这是常有的事; 一如通常情况)

②take reasonable measures(采取合理措施)

③allow room for(为……留有余地)

④be entitled to more freedom(有更多回旋余地)

● 经典搭配

· 语篇分析 ·

第六段转而指出令人担忧的现实情形:界限划分不明、公民隐私并未得到有效保护。关键词: doesn't ease the challenge of line-drawing.

①句指出现实情形:划定“无理搜查”的界限依然是个挑战(暗示公民隐私实际上难以得到有效保护)。As so often is the case 为固定表达,意为“……是常有的事”,从上段的“宪法原则”转入本段的“实际情形”(so often 强调“情形极其常见”)。stating that principle 回指第五段末“宪法赋予了公民要求敏感信息免受无理搜查的权利”。doesn't ease the challenge of line-drawing(line-drawing 源自固定用法 draw a line (between A and B)“划清界限,加以区别”,此处指“合理搜查 VS 无理搜查”)概述现实情形:很难界定“无理搜查”(警方享有很大的搜查自由)。

②③句解释①句,分情况说明现实情形:警方在搜查智能手机上享有很大自由,公民数据隐私受到